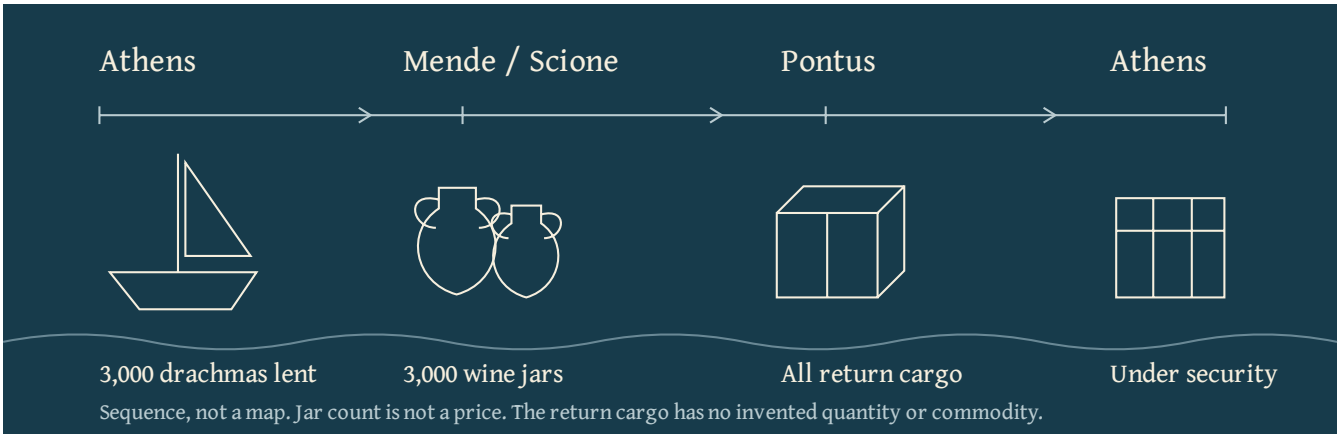
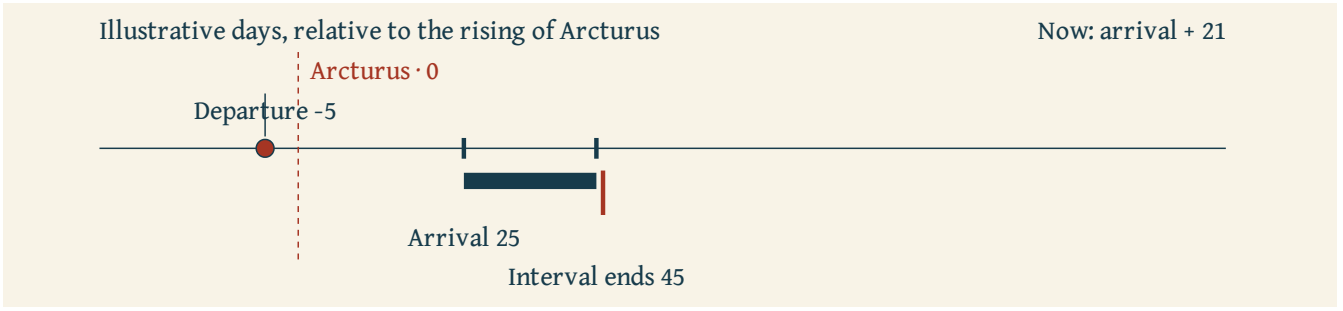
A cargo is not a debt.

A selected-clause reading of the agreement transmitted in [Demosthenes] 35.10–13. The changed voyage facts are invented. Keep departure, arrival, debt and security distinct as you compare the two accounts.





Conditional account · drachmas of silver

Principal §10	3,000
Voyage interest §10 225 per thousand × 3	675
Allowed deduction §11 No loss selected	− 0
Debt before repayment	**3,675**

The twenty-day interval has elapsed without repayment. §12 permits pledge or sale of the security and collection of a shortfall from the borrowers and their other property. Collection is a right described by the clause, not guaranteed recovery.

Security and collection

Return cargo remains under the lenders' control (§11)

Applied from sale	Shortfall still claimable
2,000	1,675

Assumed sale proceeds: 2,000. §12 extends collection of the shortfall to other property on land and sea. Actual recovery is unknown.

Kept comparison

Earlier facts stay fixed when the current voyage changes.

Fact / consequence	Kept voyage	Current voyage
Departure from Pontus	5 days before Arcturus	5 days before Arcturus
Arrival at Athens	25 days after Arcturus	25 days after Arcturus
Days after arrival	15	21
Branch	pontus; safe	pontus; safe
Loss	none; assumed 300; shared decision true	none; assumed 300; shared decision true
Rate per thousand	225	225
Voyage interest	675	675
Allowed deduction (safe-return branch only)	0	0
Debt before repayment	3,675	3,675
Repaid in full	false	false
Balance	3,675	3,675
Security	Return cargo remains under the lenders' control (§11)	Return cargo remains under the lenders' control (§11)
Assumed default sale proceeds	2,000	2,000

Fact / consequence	Kept voyage	Current voyage
Shortfall after default sale	Undetermined	1,675
Other loan on security	false	false
Same return vessel	true	true
Terms contradicted	None of the selected terms flagged	None of the selected terms flagged

Learner’s explanation

Departure five days before Arcturus selects 225 per thousand: 675 interest on 3,000. The late arrival does not raise that rate. The kept voyage is inside the twenty-day interval; the current voyage is at day 21, still unpaid. On assumed sale proceeds of 2,000, §12 leaves 1,675 claimable from the borrowers’ other property. The text does not guarantee collection.

Readings and word notes

[Demosthenes] · 35.10 · Rennie p. 107

Which event changes the rate?

ἐπὶ διακοσίαις εἴκοσι πέντε τὰς χιλίας, ἐὰν δὲ μετ’ Ἀρκτοῦρον ἐκπλεύσωσιν ἐκ τοῦ Πόντου ἐφ’ Ἱερόν, ἐπὶ τριακοσίαις τὰς χιλίας

At two hundred and twenty-five per thousand; but if they sail out of Pontus towards Hieron after Arcturus, at three hundred per thousand.

The verb fixes the relevant event: departure from Pontus towards Hieron. Moving arrival at Athens does not by itself change this rate. These are voyage terms, not an annual rate. Arcturus is the named seasonal marker; the workshop adds illustrative relative days, without assigning a modern date.

ἐκπλεύσωσιν
ἐκπλέω · sail out Aorist subjunctive after ἐάν: the conditional event.

μετ’ Ἀρκτοῦρον

μετά + accusative · after Arcturus The star's rising supplies a seasonal boundary, not a duration for compounding.

τὰς χιλίας
χίλιοι · the thousands In this rate expression: for every thousand drachmas lent.

[Demosthenes] · 35.11 · Rennie p. 108

One security, no second loan

ὑποτιθέασι δὲ ταῦτα, οὐκ ὀφείλοντες ἐπὶ τούτοις ἄλλῳ οὐδενὶ οὐδὲν ἀργύριον, οὐδ' ἐπιδανείσονται. καὶ ἀπάξουσι τὰ χρήματα τὰ ἐκ τοῦ Πόντου ἀντιφορτισθέντα Ἀθήναζε πάλιν ἐν τῷ αὐτῷ πλοίῳ ἅπαντα.

They pledge these goods, owing no money to anyone else on them, and they will not borrow further on them. They will bring all the goods loaded in exchange in Pontus back to Athens, in the same ship.

§10 names 3,000 jars of Mendaean wine as outward security. §11 then requires all the return cargo and the same vessel. The jar count is not the cargo's price, the loan principal or a known sale value. The diagram follows the change of cargo without inventing a return quantity or commodity.

ὑποτιθέασι
ὑποτίθημι · pledge as security A pledge is distinct from a cash repayment.

οὐδ' ἐπιδανείσονται
ἐπιδανείζομαι · borrow further The negative extends the restriction to later borrowing.

ἀντιφορτισθέντα
ἀντιφορτίζομαι · load in return The return goods replace the outward cargo in the voyage account.

ἐν τῷ αὐτῷ πλοίῳ
αὐτός · the same A requirement of vessel identity, not just arrival anywhere.

[Demosthenes] · 35.11 · Rennie p. 108

Safe arrival starts another interval

σωθέντων δὲ τῶν χρημάτων Ἀθήναζε, ἀποδώσουσιν οἱ δανεισάμενοι τοῖς δανείσασι τὸ γιγνόμενον ἀργύριον κατὰ τὴν συγγραφὴν ἡμερῶν εἴκοσιν, ἀφ᾽ ἧς ἂν ἔλθωσιν Ἀθήναζε

When the goods have reached Athens safely, the borrowers will repay the lenders the money due under the agreement within twenty days from their arrival at Athens.

Departure chooses the rate; safe arrival begins the repayment interval. The workshop uses elapsed whole days: 20 remains inside the displayed interval, 21 is beyond it. This is an explicit teaching convention, not a claim about Athenian calendar counting or a historical due date.

σωθέντων
σῴζω · bring safely through A genitive absolute with τῶν χρημάτων: safe arrival is a condition.

οἱ δανεισάμενοι
δανείζομαι · borrow The middle form names the borrowers; τοῖς δανείσασι names the lenders.

ἡμερῶν εἴκοσιν
εἴκοσι · twenty A repayment interval from arrival, not the loan's annual duration.

[Demosthenes] · 35.11 · Rennie p. 108

The exception has a condition

ἐντελὲς πλὴν ἐκβολῆς, ἣν ἂν οἱ σύμπλοι ψηφισάμενοι κοινῇ ἐκβάλωνται, καὶ ἄν τι πολεμίοις ἀποτείσωσιν· τῶν δ᾽ ἄλλων ἁπάντων ἐντελές.

In full, except for jettison which those sailing together vote in common to throw out, and whatever they pay to enemies; in full as regards all other losses.

Calling a loss 'jettison' is not enough: the shared decision belongs to the exception. The workshop takes a learner-entered drachma amount as the assumed allowable deduction and subtracts it from principal plus voyage interest. The clause supplies the categories, not a valuation method. Only one selected loss event is modeled.

πλὴν ἐκβολῆς
πλήν · except; ἐκβολή · throwing out The exception is narrower than every loss at sea.

ψηφισάμενοι κοινῇ

ψηφίζομαι · vote; κοινῇ · jointly The joint decision is part of the clause's description.

πολεμίοις

πολέμιος · enemy The recipient category of the separate payment exception.

[Demosthenes] · 35.11–12 · Rennie p. 108

A smaller cargo does not cap the claim

καὶ παρέξουσι τοῖς δανείσασι τὴν ὑποθήκην ἀνέπαφον κρατεῖν, ἕως ἂν ἀποδῶσι τὸ γιγνόμενον ἀργύριον κατὰ τὴν συγγραφήν. ἐὰν δὲ μὴ ἀποδῶσιν ἐν τῷ συγκειμένῳ χρόνῳ, τὰ ὑποκείμενα τοῖς δανείσασιν ἐξέστω ὑποθεῖναι καὶ ἀποδόσθαι τῆς ὑπαρχούσης τιμῆς· καὶ ἐάν τι ἐλλείπῃ τοῦ ἀργυρίου

They will let the lenders hold the security untouched until they repay the money due under the agreement. If they do not repay within the agreed time, the lenders may pledge or sell the security at the available price; and if any of the money is lacking...

The rest of §12 allows collection from Artemon and Apollodorus and all their property on land and sea. The model computes the shortfall; it does not assume that other property exists, resolve priority against another creditor, or guarantee recovery. No rule allocating excess sale proceeds is derived from this excerpt.

ὑποθήκην

ὑποθήκη · security / pledge The pledged goods are not a ceiling on the ordinary default claim.

ἐλλείπῃ

ἐλλείπω · fall short The shortfall survives a sale for less than the modeled debt.

ἐγγείων καὶ ναυτικῶν

ἔγγειος / ναυτικός · on land / at sea These words occur later in §12 and extend the described collection to other property.

[Demosthenes] · 35.13 · Rennie p. 108

Two branches the ordinary account cannot settle

τοὺς τόκους ἀποδόντων τοὺς πέρυσι γραφέντας εἰς τὴν συγγραφήν. ἐὰν δέ τι ἡ ναῦς πάθῃ ἀνήκεστον ἐν ᾗ ἂν πλέῃ τὰ χρήματα, σωτηρία δ’ ἔσται τῶν ὑποκειμένων, τὰ περιγενόμενα κοινὰ ἔστω τοῖς δανείσασιν.

Let them pay the interest written into the agreement last year. If the ship carrying the goods suffers irreparable harm, but the security survives, let what remains belong jointly to the lenders.

The first sentence concludes a conditional Hellespont provision: no entry into Pontus, a ten-day wait associated with Sirius, unloading where Athenians face no reprisals, and return to Athens. ‘Last year’ needs interpretation; Murray supplies a legal-year explanation in a note. We retain that reference without resolving it. The second sentence gives surviving security to the lenders jointly; it does not supply the ordinary safe-return deficiency calculation.

πέρυσι
πέρυσι · last year A cross-reference whose numerical meaning this model withholds.

ἀνήκεστον
ἀνήκεστος · irreparable The ship’s condition is distinguished from survival of the pledged goods.

κοινὰ
κοινός · shared / common Here the surviving security is common to the lenders.

Complete Greek context · 35.9–14

35.9. βούλομαι οὖν, ὦ ἄνδρες δικασταί, τῆς συγγραφῆς ἀκοῦσαι ὑμᾶς πρῶτον, καθ’ ἣν ἐδανείσαμεν τὰ χρήματα, καὶ τῶν μαρτύρων τῶν παραγενομένων τῷ δανείσματι· ἔπειτα περὶ τῶν ἄλλων ἐπιδείξομεν, οἷα ἐτοιχωρύχησαν οὗτοι περὶ τὸ δάνειον. λέγε τὴν συγγραφήν, εἶτα τὰς μαρτυρίας. ΣΥΓΓΡΑΦΗ.

35.10. ἐδάνεισαν Ἀνδροκλῆς Σφήττιος καὶ Ναυσικράτης Καρύστιος Ἀρτέμωνι καὶ Ἀπολλοδώρῳ Φασηλίταις ἀργυρίου δραχμὰς τρισχιλίας Ἀθήνηθεν εἰς Μένδην ἢ Σκιώνην, καὶ ἐντεῦθεν εἰς Βόσπορον, ἐὰν δὲ βούλωνται, τῆς ἐπ’ ἀριστερὰ μέχρι Βορυσθένους, καὶ πάλιν Ἀθήναζε, ἐπὶ διακοσίαις εἴκοσι πέντε τὰς χιλίας, ἐὰν δὲ μετ’ Ἀρκτοῦρον ἐκπλεύσωσιν ἐκ τοῦ Πόντου ἐφ’ Ἱερόν, ἐπὶ τριακοσίαις τὰς χιλίας, ἐπὶ οἴνου κεραμίοις Μενδαίοις τρισχιλίοις, ὃς πλεύσεται ἐκ Μένδης ἢ Σκιώνης ἐν τῇ εἰκοσόρῳ ἣν Ὑβλήσιος ναυκληρεῖ.

35.11. ὑποτιθέασι δὲ ταῦτα, οὐκ ὀφείλοντες ἐπὶ τούτοις ἄλλῳ οὐδενὶ οὐδὲν ἀργύριον, οὐδ' ἐπιδανείσονται. καὶ ἀπάξουσι τὰ χρήματα τὰ ἐκ τοῦ Πόντου ἀντιφορτισθέντα Ἀθήναζε πάλιν ἐν τῷ αὐτῷ πλοίῳ ἅπαντα. σωθέντων δὲ τῶν χρημάτων Ἀθήναζε, ἀποδώσουσιν οἱ δανεισάμενοι τοῖς δανείσασι τὸ γιγνόμενον ἀργύριον κατὰ τὴν συγγραφὴν ἡμερῶν εἴκοσιν, ἀφ' ἧς ἂν ἔλθωσιν Ἀθήναζε, ἐντελὲς πλὴν ἐκβολῆς, ἣν ἂν οἱ σύμπλοι ψηφισάμενοι κοινῇ ἐκβάλωνται, καὶ ἄν τι πολεμίοις ἀποτείσωσιν· τῶν δ' ἄλλων ἁπάντων ἐντελές. καὶ παρέξουσι τοῖς δανείσασι τὴν ὑποθήκην ἀνέπαφον κρατεῖν, ἕως ἂν ἀποδῶσι τὸ γιγνόμενον ἀργύριον κατὰ τὴν συγγραφήν.

35.12. ἐὰν δὲ μὴ ἀποδῶσιν ἐν τῷ συγκειμένῳ χρόνῳ, τὰ ὑποκείμενα τοῖς δανείσασιν ἐξέστω ὑποθεῖναι καὶ ἀποδόσθαι τῆς ὑπαρχούσης τιμῆς· καὶ ἐάν τι ἐλλείπῃ τοῦ ἀργυρίου, ὃ δεῖ γενέσθαι τοῖς δανείσασι κατὰ τὴν συγγραφήν, παρὰ Ἀρτέμωνος καὶ Ἀπολλοδώρου ἔστω ἡ πρᾶξις τοῖς δανείσασι καὶ ἐκ τῶν τούτων ἁπάντων, καὶ ἐγγείων καὶ ναυτικῶν, πανταχοῦ ὅπου ἂν ὦσι, καθάπερ δίκην ὠφληκότων καὶ ὑπερημέρων ὄντων, καὶ ἑνὶ ἑκατέρῳ τῶν δανεισάντων καὶ ἀμφοτέροις.

35.13. ἐὰν δὲ μὴ εἰσβάλωσι, μείναντες ἐπὶ κυνὶ ἡμέρας δέκα ἐν Ἑλλησπόντῳ, ἐξελόμενοι ὅπου ἂν μὴ σῦλαι ὦσιν Ἀθηναίοις, καὶ ἐντεῦθεν καταπλεύσαντες Ἀθήναζε τοὺς τόκους ἀποδόντων τοὺς πέρυσι γραφέντας εἰς τὴν συγγραφήν. ἐὰν δέ τι ἡ ναῦς πάθῃ ἀνήκεστον ἐν ᾗ ἂν πλέῃ τὰ χρήματα, σωτηρία δ' ἔσται τῶν ὑποκειμένων, τὰ περιγενόμενα κοινὰ ἔστω τοῖς δανείσασιν. κυριώτερον δὲ περὶ τούτων ἄλλο μηδὲν εἶναι τῆς συγγραφῆς. Μάρτυρες· Φορμίων Πειραιεύς, Κηφισόδοτος Βοιώτιος, Ἡλιόδωρος Πιθεύς.

35.14. λέγε δὴ καὶ τὰς μαρτυρίας. ΜΑΡΤΥΡΙΑΙ Ἀρχενομίδης Ἀρχεδάμαντος Ἀναγυράσιος μαρτυρεῖ συνθήκας παρ' ἑαυτῷ καταθέσθαι Ἀνδροκλέα Σφήττιον, Ναυσικράτην Καρύστιον, Ἀρτέμωνα, Ἀπολλόδωρον Φασηλίτας, καὶ εἶναι παρ' ἑαυτῷ ἔτι κειμένην τὴν συγγραφήν. λέγε δὴ καὶ τὴν τῶν παραγενομένων μαρτυρίαν. ΜΑΡΤΥΡΙΑ. Θεόδοτος ἰσοτελής, Χαρῖνος Ἐπιχάρους Λευκονοεύς, Φορμίων Κτησιφῶντος Πειραιεύς, Κηφισόδοτος Βοιώτιος, Ἡλιόδωρος Πιθεὺς μαρτυροῦσι παρεῖναι, ὅτ' ἐδάνεισεν Ἀνδροκλῆς Ἀπολλοδώρῳ καὶ Ἀρτέμωνι ἀργυρίου τρισχιλίας δραχμάς, καὶ εἰδέναι τὴν συγγραφὴν καταθεμένους παρὰ Ἀρχενομίδῃ Ἀναγυρασίῳ.

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7 καὶ ἐδέοντό μου δανεῖσαι χρήματα εἰς τὸν Πόντον Ἀρτέμωνι τῷ τούτου ἀδελφῷ καὶ Ἀπολλοδώρῳ, ὅπως ἂν ἐνεργοὶ ὦσιν, οὐδὲν εἰδώς, ὦ ἄνδρες δικασταί, οὐδ' ὁ Θρασυμήδης τὴν τούτων πονηρίαν, ἀλλ' οἰόμενος εἶναι ἐπιεικεῖς ἀνθρώπους καὶ οἷοίπερ προσεποιοῦντο καὶ ἔφασαν εἶναι, καὶ ἡγούμενος ποιήσειν αὐτοὺς πάντα ὅσαπερ ὑπισχνεῖτο καὶ ἀνεδέχετο
8 Λάκριτος οὑτοσί. πλεῖστον δ' ἄρα ἦν ἐψευσμένος, καὶ οὐδὲν ᾔδει οἵοις θηρίοις ἐπλησίαζε τοῖς ἀνθρώποις τούτοις. κἀγὼ πεισθεὶς ὑπὸ τοῦ Θρασυμήδους καὶ τοῦ ἀδελφοῦ αὐτοῦ, καὶ Λακρίτου τουτουὶ ἀναδεχομένου μοι πάντ' ἔσεσθαι τὰ δίκαια παρὰ τῶν ἀδελφῶν τῶν αὐτοῦ, ἐδάνεισα μετὰ ξένου
9 τινὸς ἡμετέρου Καρυστίου τριάκοντα μνᾶς ἀργυρίου. βούλομαι οὖν, ὦ ἄνδρες δικασταί, τῆς συγγραφῆς ἀκοῦσαι ὑμᾶς πρῶτον, καθ' ἣν ἐδανείσαμεν τὰ χρήματα, καὶ τῶν μαρτύρων τῶν παραγενομένων τῷ δανείσματι· ἔπειτα περὶ τῶν ἄλλων ἐπιδείξομεν, οἷα ἐτοιχωρύχησαν οὗτοι περὶ τὸ δάνειον. λέγε τὴν συγγραφήν, εἶτα τὰς μαρτυρίας.

ΣΥΓΓΡΑΦΗ.

10 Ἐδάνεισαν Ἀνδροκλῆς Σφήττιος καὶ Ναυσικράτης Καρύστιος Ἀρτέμωνι καὶ Ἀπολλοδώρῳ Φασηλίταις ἀργυρίου δραχμὰς
[926] τρισχιλίας Ἀθήνηθεν εἰς Μένδην ἢ Σκιώνην, καὶ ἐντεῦθεν εἰς Βόσπορον, ἐὰν δὲ βούλωνται, τῆς ἐπ' ἀριστερὰ μέχρι Βορυσθένους, καὶ πάλιν Ἀθήναζε, ἐπὶ διακοσίαις εἴκοσι πέντε τὰς χιλίας, ἐὰν δὲ μετ' Ἀρκτοῦρον ἐκπλεύσωσιν ἐκ τοῦ Πόντου ἐφ' Ἱερόν, ἐπὶ τριακοσίαις τὰς χιλίας, ἐπὶ οἴνου κεραμίοις Μενδαίοις τρισχιλίοις, ὃς πλεύσεται ἐκ Μένδης ἢ Σκιώνης ἐν τῇ εἰκοσόρῳ ἣν

2 ἂν om. F Q 3 οὐδ'] οὔτε S 6 ὅσαπερ] ὅσα A ὑπισχνεῖτο S F Q : ὑπισχνοῦντο A D 7 ἦν ἄρα F Q D 12 ἡμετέρου om. A 13 οὖν] δέ A 15 ἔπειτα] add. καὶ F Q D 16 ἐτυχωρύχησαν S F¹ 17 εἶτα S : ἔπειτα vulg. 18 ΣΥΓΓΡΑΦΗ ΜΑΡΤΥΡΕΣ S 19 sqq. pactionis formulam om. S : post § 37 iterant F Q D 19 ἐδάνεισεν F Q D Ναυκράτης F Q D hic et infra 20 ἀργυρίου δραχμὰς τρισχιλίας A, cf. I. J. G. ii, pp. 282, 322 : ἀργυρίου (-ίον Fᵃ corr. D) τρισχιλίας δραχμὰς F Q D, cf. § 14 22 post βούλωνται add. εἰς τὸν Πόντον εἰσβάλλειν Drerup 23 ἐπὶ τόκῳ διακοσίαις Fᵇ Qᵇ Dᵇ χιλίας A : τρισχιλίας Fᵃ Qᵃ Dᵃ 26 πλευσεῖται F Q D

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Ὑβλήσιος ναυκληρεῖ. ὑποτιθέασι δὲ ταῦτα, οὐκ ὀφείλοντες ἐπὶ 11
τούτοις ἄλλῳ οὐδενὶ οὐδὲν ἀργύριον, οὐδ' ἐπιδανείσονται. καὶ
ἀπάξουσι τὰ χρήματα τὰ ἐκ τοῦ Πόντου ἀντιφορτισθέντα Ἀθήναζε
πάλιν ἐν τῷ αὐτῷ πλοίῳ ἅπαντα. σωθέντων δὲ τῶν χρημάτων
Ἀθήναζε, ἀποδώσουσιν οἱ δανεισάμενοι τοῖς δανείσασι τὸ γιγνό-
μενον ἀργύριον κατὰ τὴν συγγραφὴν ἡμερῶν εἴκοσιν, ἀφ' ἧς ἂν
ἔλθωσιν Ἀθήναζε, ἐντελὲς πλὴν ἐκβολῆς, ἣν ἂν οἱ σύμπλοι
ψηφισάμενοι κοινῇ ἐκβάλωνται, καὶ ἄν τι πολεμίοις ἀποτείσωσιν·
τῶν δ' ἄλλων ἁπάντων ἐντελές. καὶ παρέξουσι τοῖς δανείσασι
τὴν ὑποθήκην ἀνέπαφον κρατεῖν, ἕως ἂν ἀποδῶσι τὸ γιγνόμενον
ἀργύριον κατὰ τὴν συγγραφήν. ἐὰν δὲ μὴ ἀποδῶσιν ἐν τῷ 12
συγκειμένῳ χρόνῳ, τὰ ὑποκείμενα τοῖς δανείσασιν ἐξέστω ὑπο-
θεῖναι καὶ ἀποδόσθαι τῆς ὑπαρχούσης τιμῆς· καὶ ἐάν τι ἐλλείπῃ
τοῦ ἀργυρίου, ὃ δεῖ γενέσθαι τοῖς δανείσασι κατὰ τὴν συγγραφήν,
παρὰ Ἀρτέμωνος καὶ Ἀπολλοδώρου ἔστω ἡ πρᾶξις τοῖς δανείσασι
καὶ ἐκ τῶν τούτων ἁπάντων, καὶ ἐγγείων καὶ ναυτικῶν, πανταχοῦ
ὅπου ἂν ὦσι, καθάπερ δίκην ὠφληκότων καὶ ὑπερημέρων ὄντων, [927]
καὶ ἑνὶ ἑκατέρῳ τῶν δανεισάντων καὶ ἀμφοτέροις. ἐὰν δὲ μὴ 13
εἰσβάλωσι, μείναντες ἐπὶ κυνὶ ἡμέρας δέκα ἐν Ἑλλησπόντῳ,
ἐξελόμενοι ὅπου ἂν μὴ σῦλαι ὦσιν Ἀθηναίοις, καὶ ἐντεῦθεν
καταπλεύσαντες Ἀθήναζε τοὺς τόκους ἀποδόντων τοὺς πέρυσι
γραφέντας εἰς τὴν συγγραφήν. ἐὰν δέ τι ἡ ναῦς πάθῃ ἀνήκεστον
ἐν ᾗ ἂν πλέῃ τὰ χρήματα, σωτηρία δ' ἔσται τῶν ὑποκειμένων, τὰ
περιγενόμενα κοινὰ ἔστω τοῖς δανείσασιν. κυριώτερον δὲ περὶ
τούτων ἄλλο μηδὲν εἶναι τῆς συγγραφῆς.

Μάρτυρες Φορμίων Πειραιεύς, Κηφισόδοτος Βοιώτιος, Ἡλιό-
δωρος Πιθεύς.

Λέγε δὴ καὶ τὰς μαρτυρίας. 14

1–2 ἄλλῳ οὐδενὶ ἐπὶ τούτοις $F^b Q^b D^b$ 3 τὰ ἐκ] τὰ om. A $F^b Q^b D^b$ 3–4 πάλιν Ἀθήναζε F Q D 6 ante ἡμερῶν excidisse δόκιμον putat Blass coll. § 24 7 ἣν] ἧς A 8 κοινῇ ψηφ. A $F^b Q^b D^b$ βάλωνται A ἀποτίσωσιν A $F^a Q^a D^a$: ἐκτίσωσι $F^b Q^b D^b$ 9 δ' om. F Q D 10 κρατεῖν om. $F^a Q^a D^a$ 11 ἐν om. A 14 ᾗ F Q D : οὗ A γίνεσθαι A 15 παρὰ A $F^b Q^b D^b$: κατὰ $F^a Q^a D^a F^b$ corr., fluctuat inscriptionum usus ἡ om. A 20 σῦλαι vulg. Harpocr. : σύλα A 23 σωτηρία δ' ἔσται . . . τὰ A : σ. ἔστω . . . τὰ δὲ F Q D : (σ. δ' ἔσται), τῶν ὑποκειμένων τὰ coni. Sieveking : σωτήρια ἔστω . . . τὰ δὲ Sandys 26–28 Μάρτυρες usque ad μαρτυρίας om. A 26 Κηφισόδοτος] Κηφισόδωρος $F^b Q^b D^b$ 27 Πιτθεύς codd. hic et § 14 § 14 om. S

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ΜΑΡΤΥΡΙΑΙ.

Ἀρχενομίδης Ἀρχεδάμαντος Ἀναγυράσιος μαρτυρεῖ συνθήκας παρ' ἑαυτῷ καταθέσθαι Ἀνδροκλέα Σφήττιον, Ναυσικράτην Καρύστιον, Ἀρτέμωνα, Ἀπολλόδωρον Φασηλίτας, καὶ εἶναι παρ' ἑαυτῷ ἔτι κειμένην τὴν συγγραφήν.

Λέγε δὴ καὶ τὴν τῶν παραγενομένων μαρτυρίαν.

ΜΑΡΤΥΡΙΑ.

Θεόδοτος ἰσοτελής, Χαρῖνος Ἐπιχάρους Λευκονοεύς, Φορμίων Κτησιφῶντος Πειραιεύς, Κηφισόδοτος Βοιώτιος, Ἡλιόδωρος Πιθεὺς μαρτυροῦσι παρεῖναι, ὅτ' ἐδάνεισεν Ἀνδροκλῆς Ἀπολλοδώρῳ καὶ Ἀρτέμωνι ἀργυρίου τρισχιλίας δραχμάς, καὶ εἰδέναι τὴν συγγραφὴν καταθεμένους παρὰ Ἀρχενομίδῃ Ἀναγυρασίῳ.

15 Κατὰ τὴν συγγραφὴν ταύτην, ὦ ἄνδρες δικασταί, ἐδάνεισα
[928] τὰ χρήματα Ἀρτέμωνι τῷ τούτου ἀδελφῷ, κελεύοντος τούτου καὶ ἀναδεχομένου ἅπαντα ἔσεσθαί μοι τὰ δίκαια κατὰ τὴν συγγραφήν, καθ' ἣν ἐδάνεισα τούτου αὐτοῦ γράφοντος καὶ συσσημηναμένου, ἐπειδὴ ἐγράφη. οἱ μὲν γὰρ ἀδελφοὶ οἱ τούτου ἔτι νεώτεροι ἦσαν, μειράκια κομιδῇ, οὗτοσὶ δὲ Λάκριτος Φασηλίτης, μέγα πρᾶγμα, Ἰσοκράτους μαθητής·
16 οὗτος ἦν ὁ πάντα διοικῶν, καὶ ἑαυτῷ με τὸν νοῦν προσέχειν ἐκέλευεν· αὐτὸς γὰρ ἔφη ποιήσειν μοι τὰ δίκαια ἅπαντα καὶ ἐπιδημήσειν Ἀθήνησιν, τὸν δὲ ἀδελφὸν τὸν ἑαυτοῦ Ἀρτέμωνα πλεύσεσθαι ἐπὶ τοῖς χρήμασιν. καὶ τότε μέν, ὦ ἄνδρες δικασταί, ὅτ' ἐβούλετο τὰ χρήματα λαβεῖν παρ' ἡμῶν, καὶ ἀδελφὸς ἔφη εἶναι καὶ κοινωνὸς τοῦ Ἀρτέμωνος,
17 καὶ λόγους θαυμασίως ὡς πιθανοὺς ἔλεγεν· ἐπειδὴ δὲ τάχιστα ἐγκρατεῖς ἐγένοντο τοῦ ἀργυρίου, τοῦτο μὲν διενεί-

1 ΜΑΡΤΥΡΙΑ Reiske, sed cf. Drerup Urk. p. 317 3 παρ' ἑαυτὸν F Q D 9 Κτησιφῶντος Kirchner coll. C. I. A. ii 2. 804 : Κηφισοφῶντος codd. 9–10 Ἡλιόδωρος Πιθεὺς om. F Q D 17 συνσημηναμένου S 18 ἔτι om. A μειράκια κομιδῇ] καὶ μειράκια παντάπασιν S A 20 με] μὲν S¹ προσέχειν τὸν νοῦν A 22 τὸν αὑτοῦ vulg. : ἑαυτοῦ S 23 πλευσεῖσθαι codd. 26 ὡς S solus

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